



SPONSOR: Sen. Hoffner & Rep. Bush

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 172

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO THE OFFICE OF DEFENSE SERVICES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 4603, Title 29 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 4603. Term of office; compensation; assistants.

4 (a) For appointments made after July 1, 2015, the Chief Defender shall serve for a term of 8 years from the date of
5 appointment.

6 (b) The Chief Defender may appoint as many assistant attorneys, clerks, investigators, stenographers and other
7 employees as the Chief Defender considers necessary to enable the Office of Defense Services to carry out the
8 responsibilities of the office. Assistant Public Defenders and attorneys contracting with the Office of Conflicts Counsel
9 must be licensed to practice in this State.

10 (c) The compensation of persons appointed under subsection (b) of this section shall be fixed by the Chief
11 Defender.

12 (d) The compensation of assistant attorneys appointed by the Chief Defender pursuant to paragraph (b) of this
13 section must be at least in parity with the compensation of Deputy Attorneys General.

14 (e) Salaried attorneys employed by the Office of Defense Services are prohibited from engaging in the practice of
15 law outside the duties of the Office of Defense Services. Salaried attorneys who have already established private practices
16 as of January 1, 2015, are exempt from the prohibition until May 28, 2025. After May 28, 2025, all salaried attorneys
17 employed by the Office of Defense Services are prohibited from engaging in private law practice.

SYNOPSIS

This Act codifies the longstanding custom and practice in Delaware of compensating Deputy Attorneys General and Assistant Public Defenders comparably. This Act is also consistent with the American Bar Association's Ten Principles of a Public Defense Delivery System which states: "The compensation for lawyers working for Public Defense Providers should be appropriate for and comparable to other publicly funded lawyers. Full-time public defender salaries and benefits should be no less than the salaries and benefits for full-time prosecutors." Finally, this Act codifies the continuing belief in Delaware that comparable compensation is necessary to achieve equal justice under law.

Author: Senator Hoffner